THE SUGAR DEVELOPMENT FUND ACT, 1982

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IndiaCode

THE SUGAR DEVELOPMENT FUND ACT, 1982

ACT NO. 4 OF 1982

[19*th March*, 1982.]

An Act to provide for the financing of activities for development of sugar industry and for matters connected therewith or incidental thereto.

BE it enacted by Parliament in the Thirty-third Year of the Republic of India as follows:—

1. Short title, extent and commencement.—(*1*) This Act may be called the Sugar Development Fund Act, 1982.

(*2*) It extends to the whole of India.

(*3*) It shall come into force on such date[1] as the Central Government may, by notification in the Official Gazette, appoint.

2. Definitions.—In this Act, unless the context otherwise requires,—

(*a*) "Committee" means the Committee constituted under section 6;

(*b*) "Fund" means the Sugar Development Fund formed under section 3;

(*c*) "prescribed" means prescribed by rules made under this Act;

(*d*) all other words and expressions used in this Act and not defined, but defined in the Sugar Cess Act, 1982 (3 of 1982), shall have the meanings respectively assigned to them in that Act.

3. Sugar Development Fund.—(*1*) There shall be formed a fund to be called the Sugar Development Fund.

(*2*) An amount equivalent to the proceeds of the duty of excise levied and collected under the Sugar Cess Act, 1982(3 of 1982), reduced by the cost of collection as determined by the Central Government, together with any moneys received by the Central Government for the purposes of this Act, shall, after due appropriation made by Parliament by law, be credited to the Fund.

(*3*) The Fund shall consist of the amounts credited under sub-section (*2*) and any income from investment of such amounts.

4. Application of Fund.—(*1*) The Fund shall be applied by the Central Government,—

(*a*) for making loans for facilitating the rehabilitation and modernisation of any sugar factory or any unit thereof or the undertaking of any scheme for development of sugarcane in the area in which any sugar factory is situated;

[2][(*aa*) for making loans to any sugar factory or any unit thereof for bagasse-based co-generation power projects with a view to improving their viability;

(*aaa*) for making loans to any sugar factory or any unit thereof for production of anhydrous alcohol or ethanol from alcohol with a view to improving their viability;]

(*b*) for making grants for the purpose of any research project aimed at development of sugar industry;

[3][(*bb*) for defraying expenditure for the purpose of building up and maintenance of buffer stocks of sugar with a view to establishing price of sugar;]

[2][(*bbb*) for defraying expenditure on internal transport and freight charge to the sugar factories on export shipments of sugar with a view to promoting its export;]

1. 1st June, 1982, *vide* notification No. G.S.R. 436(E), dated 29th May, 1982, *see* Gazette of India, Extraordinary, Part II, sec. 3(*i*).
2. Ins.by Act 30 of 2002, s. 2 (w.e.f. 21-6-2002)..
3. Ins. by Act 64 of 1982, s. 2 (w.e.f.12-11-1982).

[1][(*bbbb*) for defraying expenditure for the purpose of financial assistance to sugar factories towards interest on loans given in terms of any scheme approved by the Central Government from time to time;]

(*c*) for defraying any other expenditure for the purposes of this Act.

(*2*) The manner in which any loans or grants may be made under this section and the terms and conditions subject to which such loans or grants may be made shall be such as may be prescribed.

5. Applications for loans or grants.—Every application for loan or grant under section 4 shall be made to the Committee in such manner and in such form as may be prescribed.

6. Committee.—(*1*) For the purpose of securing speedy consideration and disposal of applications received under section 5 and for considering any problems arising in the course of the administration of this Act, the Central Government may constitute a committee of officers of that Government.

(*2*) The composition of the Committee and the procedure to be followed by the Committee in the discharge of its functions under this Act shall be such as may be prescribed.

7. Annual report of activities financed under the Act.—The Central Government shall, as soon as may be, after the end of each financial year, cause to be published in the Official Gazette, a report giving an account of the activities financed under this Act during the financial year, together with a statement of accounts.

8. Power to call for reports and returns.—The Central Government may require an occupier of a sugar factory to furnish, for the purposes of this Act, such statistical and other information, in such form and within such period as may be prescribed.

9. Power to make rules.—(*1*) The Central Government may, by notification in the Official Gazette, make rules for carrying out the provisions of this Act.

(*2*) In particular and without prejudice to the generality of the foregoing power, such rules may provide for,—

(*a*) the manner in which any loans or grants may be made and the terms and conditions subject to which such loans or grants may be made under section 4;

(*b*) the manner and form in which applications may be made under section 5;

(*c*) the composition of the Committee under section 6 and the procedure to be followed by the Committee in the discharge of its functions under this Act;

(*d*) the form in which and the period within which statistical and other information may be furnished under section 8;

(*e*) any other matter which is required to be or may be prescribed.

(*3*) Every rule made under this section shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

1. Ins. by Act 4 of 2008, s. 2 (w.e.f. 5-2-2008).